

Here, the POS shows actual notice on January 26, 2025. Thus, the 180-day timeline would have run on July 25, 2025 – over a year ago. Thus, the motion is untimely.

13. *Angelus Metal Finishing & Polishing Co. v. Duocon Inc., et al*, Case No. CIVSB2438110
Plaintiff Angelus Metal's Motion for Summary Judgment
7/21/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Plaintiff's Request for Judicial Notice: The Court would **GRANT** notice of the Stipulation for Entry of Judgment in LLTSB2400047 per Evidence Code section 452(d).

As to the Motion: The Court would **GRANT**¹ this unopposed motion for summary judgment against Defendant Monese and defaulted Defendant DuoEcon for a monetary judgment of \$97,219.98.

Plaintiff to submit a judgment in accordance with the findings herein within the next ten court days.

Case Summary

This litigation concerns recovery of owed rent. Plaintiff alleges that on August 8, 2022, the parties entered into a lease for commercial property. Plaintiff alleges that, by April 1, 2024, Defendants failed to pay rent, and Plaintiff initiated an unlawful detainer action (LLTSB2400047). That agreement had Defendants agree to give up possession; allowed Plaintiff to retain the security deposit; and alleged Plaintiff to pursue owed rent and damages through separate litigation. As such, on December 30, 2024, Plaintiff initiated this lawsuit for breach of contract.

Plaintiff now moves for summary judgment. Defendant DuoEcon is in default and thus this motion constitutes a "prove up" for default purposes. Defendant Monese has answered the Complaint but failed to oppose this instant motion for summary judgment.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-

¹ Materials Considered: Complaint, Lease (Exh. A to Complaint); Answer; MSJ; Separate Statement of Undisputed Facts; Request for Judicial Notice; Arnold Declaration; Deemed Admitted FRAs (Exhs. D & F); Stipulated Judgment (Exh. G); 3-Day Notice to Pay or Quit (Exh. H); and Undisputed Material Facts: 1-2, 6-19.

1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

The elements for a breach of contract are (1) the existence of a contract, (2) the plaintiff's performance or excuse for performance, (3) the defendant's breach, and (4) resulting damages. (*Wall Street Network Ltd. v. N.Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) A guarantor promises to answer for the debt, default, or miscarriage of another. (Civil Code §2787.) The guarantor's obligation rests on the contract of guaranty, which is separate and independent from the principal debtor's obligation. (*Neiderer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1505.) The element for breach of a guaranty are the same as for breach of contract, in other words: (1) the existence of a guaranty contract; (2) the plaintiff performed under the underlying contract; (3) the debtor defaulted on the contract; (4) the guarantor failed to perform; and (5) resulting damages. (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486; see also *Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 819.)

Existence of Contracts. Plaintiff Angelus and Defendant DuoEcon entered into a Standard Industrial/Commercial Single-Tenant Lease-Gross (Lease) on August 8, 2022. Monese personally guaranteed the Lease and all payments of rents and other sums under the Lease. (UF, 6-7; also Lease [Exh. A to Complaint].)

Plaintiff Angelus Metal's Performance. The lease required Plaintiff to provide the subject property to Defendant DuoEcon. (Lease [§1].) Although there is no clear evidence on performance, Plaintiff notes that it obtained a stipulated judgment to regain possession of the subject property. (UF, 1; Exh. G.) If it had to regain possession, then it implicitly gave possession to DuoEcon, which means it performed.

Defendants' Breach. Defendant DuoEcon initially failed to pay the February and March 2024 rent. It paid that rent in May of 2024, but it did not remit the late fees. It then failed to make all rent payments between April 2024 and August 2024. (UF, 8-15; Arnold Decl., ¶¶7-8.) Thus, a 3-day notice to pay or quit was issued. Defendant DuoEcon vacated the premises on October 2, 2024. (UF, 16-17; Arnold Decl., ¶¶9-10.)

As vacated in October 2, 2024, the Lease's provision for holdover damages was triggered, which provides that "Lessor's damages during any holdover period shall be computed at the amount of the Rent . . . due during the last full month before the expiration or termination of this Lease . . . , but with the Base Rent being 150% of the Base Rent payable during such last full month." (UF, 18; Lease [§26].)

Because Defendant Monese was part of the unlawful detainer litigation and as a part of the settlement in that litigation, Defendant Monese was aware of the breach by Defendant DuoEcon and the claim on her guarantee, which she agreed per the settlement could be sought in a separate litigation. (UF, 1-2; Exh. G.)

Plaintiff's Damages. Plaintiff is owed \$97,219.98, which is based on the following:

- Unpaid Rent between April 2024 and August 2024 (5 months) at \$14,280 per month: \$71,400.00
- Late Fees between February 2024 and August 2024 (7 months) at \$1,428 (10% of base rent of \$14,280) per month: \$9,996.00
- Holdover rent for September 2024, at 1.5 times the base rent of \$14,740: \$22,110.
- Repair Damages for hazardous material removal (\$8,640) and general repairs and painting of the Subject Property, which was beyond the ordinary wear and tear (\$2,073.98): \$10,713.98.
- Less the retained security deposit: \$17,000.

(UF, 19; Arnold Decl., ¶¶6, 11.)

Based on the above facts and evidence, Plaintiff sufficiently establishes a *prima facie* case of breach of contract against Defendant Duo with it owing \$97,219.98. Also, the same facts and evidence supports Defendant Monese guaranteed the rental payments under the Lease, Plaintiff Angelus performed, Monese breached her obligation when she did not pay the monies owed under the Lease by Duo, and Plaintiff Angelus' resulting damages are \$97,219.98.

14. *Bernal, et al, v. Express Messenger Systems, Inc., et al*, Case No. CIVSB2319614
Motion for Final Approval of Class Action Settlement
7/21/26, 1:30 p.m., S-17

The Court would **GRANT** contingent on attorneys' fees being adjusted to 1/3rd the gross rather than 35%. Movant will provide an updated proposed order indicating attorneys' fees at no more than \$1,500,000.

Here, this proposed settlement constitutes an effort to globally settle six matters from several jurisdictions: (1) the instant matter, *Bernal, et al, v. Express Messenger Systems, Inc., et al*, Case No. CIVSB2319614, filed on August 15, 2023; (2) *Martin v. OnTrac Logistics, Inc.*, Case No. 23STCV07710, filed on April 7, 2023; (3) *McNorton v. OnTrac Logistics, Inc.*, Case No. CGC23607925, filed on July 25, 2023; (4) *Estrada v. OnTrac Logistics, Inc.*, Case No. CIVSB2400407, filed on January 17, 2024; (5) *Earnest v. OnTrac Logistics, Inc.*, Case No. STK-VC-